

Terms and Conditions

The Applicant Agency HEREBY Certifies and Agrees to the following terms and conditions:

1. No part of any grant may be used to pay the costs of attempting to influence legislation or appropriations pending before either the State, Local, or Federal Governing bodies (e.g. Legislature, Congress, County Commissioners, etc.). No part of any grant may be used to pay the salaries of any person attempting to influence legislation or appropriations at the State, Local, or Federal level.

Aging Division Assurances

The Applicant Agency HEREBY AGREES AND CERTIFIES that the following provisions are part of the official application, and as such become binding upon the performance of the project subsequent to the award of any funds by the State of Wyoming, Department of Health, Aging Division, Community Living Section:

1. Grantee shall comply with Legal References and Authority including, but not limited to:
 - a. Public Law 109-365, Older Americans Act of 1965, as reauthorized in 2016;
 - b. Public Law-502, Single Audit Act of 1984, as applicable;
 - c. Public Law 104-156, Single Audit Act Amendments of 1996, as applicable;
 - d. 45 C.F.R. Part 1321 (Grants for State and Community Programs), as applicable;
 - e. 45 C.F.R. Part 74 (Uniform Administrative Requirements for Awards and Sub-awards to Institutions of Higher Education), as applicable;
 - f. 45 C.F.R. Part 92 (Uniform Administrative Requirements for Grants and Cooperative Agreements to State and Local Governments), as applicable;
 - g. 42 C.F.R. § 1003.102, as applicable;
 - h. Government Performance and Results Act of 1993, as applicable;
 - i. Public Law 93-400, Federal Acquisition Regulation, as applicable;
 - j. OMB Cost Principles, as applicable;
 - k. OMB Circulars, as applicable; and
 - l. 31 U.S.C. § 3729-3733, False Claims Act, as applicable.
2. Grantee, if required to be audited in accordance with OMB Circular A-133, will provide a copy of such audit to the Aging Division, Community Living Section, and a separate copy to the State of Wyoming, Department of Audit.
3. Grant funds will be used only for the purpose of activities set forth in the grantee's funding proposal as approved by the Wyoming Department of Health, Aging Division, Community Living Section. Grantee must properly account for and report on funds from all sources as outlined in the Grant Application approved by the Aging Division, Community Living Section.
4. Grantee shall comply with policies, procedures, processes, rules, regulations, information and education bulletins as established by the Aging Division, Wyoming Department of Health.
5. Grantee shall immediately report all instances of unauthorized activities regarding Aging Division, Community Living Section Programs or Aging Division, Community Living Section Grant Funding to the Aging Division. This includes, but is not limited to, fraud, abuse,

mismanagement of funds, violation of law, violation of policy, violation of regulation, violation of contract terms, etc.

6. Grantee shall establish written policies for all employees informing them about the federal False Claims Act and Whistleblower protections. The grantee shall provide a mechanism for detecting, preventing, and reporting any suspected fraud, waste or abuse. The grantee shall provide a description of these employee rights in an employee handbook. All employees shall be trained within thirty (30) days of hire AND annually regarding fraud, the False Claims Act, and Whistleblower protections. Documentation of this training shall be maintained at the organization and kept in personnel files.

7. The Grantee's Board of Directors or applicable governing body shall be knowledgeable of the obligations and responsibilities of the Board and/or applicable governing body, authorized and unauthorized activities under the grant, required reporting and laws, rules and regulations governing grant funded activities.

8. Funds that may be awarded as a result of this request are to be expended for the purpose set forth by the Wyoming Department of Health, Aging Division. A grantee must properly account for and report on funds from all sources as outlined in the Grant Application approved by the Aging Division, Community Living Section.

9. Grantee must act in accordance with all applicable laws, regulations, policies and procedures of the State of Wyoming, Aging Division, Community Living Section, as well as all applicable Federal regulations and laws.

10. After a grant has been awarded, any proposed changes to the program plan, as detailed in the grant application, shall be submitted in writing to, and approved by, the Aging Division, Community Living Section. Upon written notification of approval, the changes shall be deemed incorporated into and will become a part of this agreement.

11. Funds awarded by the Aging Division, Community Living Section may be suspended or terminated, or a program may be placed on probationary status at any time for violations of any terms and requirements of this and any subsequent agreements or contracts. The length and terms of probationary status will be determined by the Senior Administrator of the Wyoming Department of Health, Aging Division.

Federal Assurances

Department of Health and Human Services
Administration on Community Living

CERTIFICATIONS REGARDING DEBARMENT, SUSPENSION AND OTHER RESPONSIBILITY MATTERS, DRUG-FREE WORKPLACE REQUIREMENTS AND LOBBYING

Grantees shall refer to the regulations cited below to determine the certification to which they are required to attest. Grantees shall also review the instructions for certification included in the regulations before completing this form. Signature on this form provides for compliance with

certification requirements under 45CFR Part 76, "Government Debarment and Suspension (Non-procurement)" and "Government wide Requirements for Drug-Free Workplace" and 45CFR Part 93, "New Restrictions on Lobbying." The certifications shall be treated as a material representation of fact upon which reliance will be placed when the Administration on Aging determines to award the covered transaction, grant, or cooperative agreement.

1. Debarment, Suspension, and Other Responsibility Matters

As required by Executive Order 12549, Debarment and Suspension, and implemented at 45 CFR Part 76, for prospective participants in primary covered transactions, as defined at 45 CFR Part, 76, Sections 76.105 and 76.110.

A. The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:

- (a) Are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded by any Federal department or agency;
- (b) Have not within a three-year period preceding this proposal been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property;
- (c) Are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1)(b) of this certification; and
- (d) Have not within a three-year period preceding this application/proposal had one or more public transactions (Federal, State or local) terminated for cause or default.

B. Where the prospective primary participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

2. Certification Regarding Drug-Free Workplace Requirements

Alternate I. (Grantees Other Than Individuals)

As required by the Drug-Free Workplace Act of 1988, and implemented at 45 CFR Part 76, Subpart F, for grantees, as defined at 45 CFR Part 76, Sections 76.605 and 76.610

A. The grantee certifies that it will or will continue to provide a drug-free workplace by:

(a) Publishing a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the grantee's workplace and specifying the actions that will be taken against employees for violation of such prohibition;

(b) Establishing an ongoing drug-free awareness program to inform employees about --

- (1) The dangers of drug abuse in the workplace;
- (2) The grantee's policy of maintaining a drug-free workplace;
- (3) Any available drug counseling, rehabilitation, and employee assistance programs; and
- (4) The penalties that may be imposed upon employees for drug abuse violations

occurring in the workplace;

(c) Making it a requirement that each employee to be engaged in the performance of the grant be given a copy of the statement required by paragraph (a);

(d) Notifying the employee in the statement required by paragraph (a) that, as a condition of employment under the grant, the employee will --

- (1) Abide by the terms of the statement; and
- (2) Notify the employer in writing of his or her conviction for a violation of a criminal drug statute occurring in the workplace no later than five calendar days after such conviction;

(e) Notifying the agency in writing, within ten calendar days after receiving notice under paragraph (d)(2) from an employee or otherwise receiving actual notice of such conviction. Employers of convicted employees must provide notice, including position title, to: Director, Office of Grants Management and Policy, ASAM, Department of Health and Human Services, Room 336-E, HHH Building, 200 Independence Avenue, S.W., Washington, D.C. 20201. Notice shall include the identification number(s) of each affected grant;

(f) Taking one of the following actions, within 30 calendar days of receiving notice under paragraph (d)(2), with respect to any employee who is so convicted --

- (1) Taking appropriate personnel action against such an employee, up to and including termination, consistent with the requirements of the Rehabilitation Act of 1973, as amended; or
- (2) Requiring such employee to participate satisfactorily in a drug abuse assistance or rehabilitation program approved for such purposes by a Federal, State, or local health, law enforcement, or other appropriate agency;

(g) Making a good faith effort to continue to maintain a drug-free workplace through implementation of paragraphs (a), (b), (c), (d), (e) and (f).

Alternate II. (Grantees Who Are Individuals)

As required by the Drug-Free Workplace Act of 1988, and implemented at 45 CFR Part 76, Subpart F, for grantees, as defined at 45 CFR Part 76, Sections 76.605 and 76.610

A. The grantee certifies that, as a condition of the grant, he or she will not engage in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance in conducting any activity associated with the grant;

B. If convicted of a criminal drug offense resulting from a violation occurring during the conduct of any grant activity, he or she will report the conviction, in writing, within 10 calendar days of the conviction, to: Director, Office of Grants Management and Policy, ASAM, Department of Health and Human Services, Room 336-E, HHH Building, 200 Independence Avenue, S.W., Washington, D.C. 20201. When notice is made to such a central point, it shall include the identification number(s) of each affected grant.

3. Lobbying

Certification for Contracts, Grants, Loans, and Cooperative Agreements

As required by Section 1352, Title 31 of the U.S. Code, and implemented at 45 CFR Part 93, for persons entering into a grant, cooperative agreement or contract over \$100,000, or loan, or loan guarantee over \$150,000, as defined at 45 CFR Part 93, Sections 93.105 and 93.110 the grantee certifies that to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal certification is a material representation of fact upon which reliance was placed when this contract, grant, loan, or cooperative agreement.

(2) If any funds, other than Federal appropriated funds, have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The undersigned shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly. This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

4. Statement for Loan Guarantees and Loan Insurance

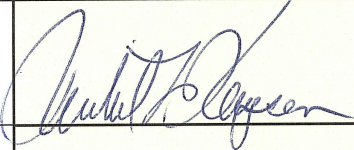
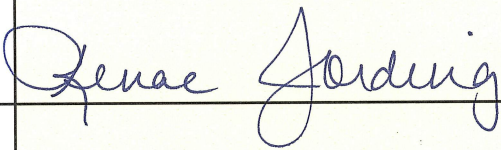
The undersigned states, to the best of his or her knowledge and belief, that:

If any funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this commitment providing for the United States to insure or guarantee a loan, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in

accordance with its instructions.

Submission of this statement is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required statement shall be subject to a civil penalty of not less than \$10,000 and not more than \$100,000 for each such failure.

Signatures: By signing this report, I certify to the best of my knowledge and belief that the report is true, complete, and accurate, and the expenditures, disbursements, and cash receipts are for the purpose and objectives set forth in the terms and conditions of the Federal award. I am aware that any false, fictitious, or fraudulent information, or the omission of any material fact, may subject me to criminal, civil or administrative penalties for fraud, false statements, false claims or otherwise.

LEGAL CORPORATE NAME OF APPLICANT ORGANIZATION:	City of Cheyenne (Transit Program)	
SIGNATURE OF ORGANIZATION'S BOARD CHAIRMAN (BLUE INK)		Date: 7/6/16
TYPED NAME OF BOARD CHAIRMAN	Richard L. Kaysen, Mayor	
SIGNATURE OF ORGANIZATION'S DIRECTOR (BLUE INK)		Date: 7/6/16
TYPED NAME OF ORGANIZATION'S DIRECTOR	Renae Jording, Transit Director	